

INDEPENDENCE OF SUPREME COURT & HIGH COURTS



SC is a federal court,
the highest court of
appeal, the guarantor
of the fundamental
rights of the citizens
and guardian of the
COI.



The independence of the SC and the HCs is very essential for the effective discharge of the duties assigned to them respectively.

The COI has made the given provisions to safeguard and ensure the independent and impartial functioning of the SC and a HC:



1. Mode Of Appointment

This provision curtails the absolute discretion of the executive as well as ensures that the judicial appointments are not based on any political or practical considerations.



2. Security of Tenure

The judges can be removed from office by the President only in the manner and on the grounds mentioned in the COI, i.e. **they don't hold their office during the pleasure of the President.**



3. Fixed Service Conditions

The conditions of service of the judges of the SC/ HCs remain same during their term of office.

4. Expenses Charged on Consolidated Fund

Thus, the expenses are non-votable by the Parliament.

(though they can be discussed by it).



5. Conduct of Judges cannot be Discussed

The COI prohibits any discussion in Parliament or in a State Legislature with respect to the conduct of the judges in the discharge of their duties, except when an impeachment motion is under consideration of the Parliament.



6. Ban on Practice after Retirement

This ensures that they don't favour any one in the hope of future favour.

7. Power to Punish for its Contempt

The SC or a HC can punish any person for its contempt. Thus, its actions and decisions cannot be criticised and opposed by any body.



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8. Freedom to Appoint its Staff

The CJI and CJHC can appoint officers & servants of the SC and HC respectively without any interference from the executive. He can also prescribe their conditions of service.



*9. Its Jurisdiction cannot be
Curtailed*

The Parliament (and State Legislature, in case of HC) is not authorized to curtail the jurisdiction and powers of the SC, and, jurisdiction and powers of a HC in so far as they are specified in the COI (but in other respects, can be changed both by the Parliament and the State Legislature).



10. Separation from Executive

This means that the executive authorities should not possess the judicial powers. Consequently, upon the implementation, the role of executive authorities in judicial administration came to an end.

